

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

JOINT MOTION TO EXTEND DISCOVERY AND CASE DEADLINES

Complainant FormuKleen, Inc., by its authorized representative, and Respondent Top Shipping Systems, Corp., by counsel (collectively, the “Parties”), jointly move the Presiding Officer for an order extending the discovery cut-off and related deadlines, and state as follows:

1. On November 13, 2025 the Presiding Officer issued an Order directing the parties to submit a joint status report by November 20, 2025 and, if necessary, a joint motion to extend discovery. The Order set the current discovery cut-off as December 5, 2025.
2. The Federal Maritime Commission was closed due to a federal government shutdown from October 3, 2025 through November 13, 2025. During that period the Commission’s processing and issuance of rulings were suspended. Complainant filed a proposed protective order on October 2, 2025; the Commission was unable to act on that filing while it was closed.
3. The Commission shutdown materially delayed case activity, including processing of the parties’ pending filings and the Court’s consideration of the protective order. In addition, the upcoming Thanksgiving, Christmas, and New Year holiday periods will further limit available time for

document review, and production schedules. Taken together, the shutdown and holiday season create a material disruption to the schedule that warrants an adjustment to discovery deadlines.

4. The Parties have conferred and have prepared a Joint Status Report and Proposed Scheduling Order that sets forth a practicable, consolidated schedule for completion of discovery and related deadlines. That Joint Status Report and Proposed Scheduling Order is attached hereto as Exhibit A and is incorporated by reference.
5. Good cause exists to extend the discovery cut-off and related deadlines in order to restore the parties to the position they occupied prior to the Commission closure, to permit meaningful discovery and document production pursuant to the parties' obligations, and to avoid undue prejudice to either party. The Proposed Scheduling Order attached as Exhibit A accounts for the shutdown period and the holiday schedule and provides a reasonable timetable to complete written discovery, document production, depositions, and expert disclosures without forcing the parties to compress discovery into an unduly short or impractical timeframe.
6. Accordingly, the Parties jointly request that the Presiding Officer adopt the dates and deadlines set forth in Exhibit A and extend the discovery cut-off and related deadlines accordingly, to account for the Commission shutdown and a reasonable holiday buffer.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

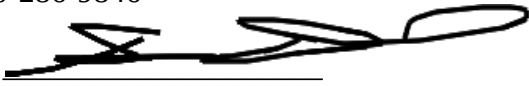
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Signature: 

Date: 11/19/2025

Daniel W. Raab, Esq.

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Email: raabdaniel57@gmail.com

Signature: 

Date: 11 / 19 / 2025

CERTIFICATE OF SERVICE

I certify that on November 20th, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission.

/Sara Dandan/

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JOINT STATUS REPORT

Pursuant to the Administrative Law Judge's ORDER REQUIRING JOINT STATUS REPORT, JOINT MOTION TO EXTEND (IF NECESSARY) AND JOINT MOTION FOR PROTECTIVE ORDER (IF NECESSARY) BY NOVEMBER 20, 2025 dated November 13, 2025, Complainant FormuKleen, LLC ("FormuKleen" or "Complainant") and Respondent Top Shipping Systems Corp. ("TSS" or "Respondent") (jointly the "Parties") hereby submit their Joint Status Report.

Status of Discovery

Discovery has failed to progress while both parties wait on a proposed motion for protective order. Due to this, and the government shutdown that lasted 40 days and meant that the Commission was inactive, both parties are requesting to extend discovery once the protective order is entered, via a separate joint motion.

Proposed Scheduling Order

Due to the issues described above, and the upcoming holiday season, the Parties propose the following revised Scheduling Order:

- **January 20, 2026** – Responses to Initial Discovery Requests Due
- **January 26, 2026** – Depositions (if any) Begin
- **February 25, 2026** – Deadline for Submission of Additional Discovery Requests
- **April 06, 2026** – Close of Discovery and Completion of Depositions (if any Depositions occur)
- **April 27, 2026** – Joint Status Report
- **May 27, 2026** – Complainant's Brief, Proposed Findings of Fact, and Appendix Due
- **June 26, 2026** – Respondent's Opposition Brief, Responses to Proposed Findings of Fact, and Appendix Due
- **July 13, 2026** – Complainant's Reply Brief and Responses to Proposed Findings of Fact Due

Respectfully submitted,

Sara Dandan

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